

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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CHEVAR HALL,

Plaintiff,

-against-

POLICE OFFICER HENRY LOPEZ, Tax No. 947659, and
SERGEANT GREGORY FONTAINE, Tax No. 934280,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 24, 2019

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER HENRY LOPEZ, Tax No. 947659, 24th Precinct, 151 W 100th St,
New York, NY 10025
SERGEANT GREGORY FONTAINE, Tax No. 934280, 20th Precinct, 20 W 82nd St,
New York, NY 10024

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, CHEVAR HALL, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution. On July 2, 2016, at approximately 5:00 p.m. plaintiff CHEVAR HALL was subjected to an unlawful stop, question, frisk, detention, false imprisonment, and false imprisonment while a lawful passenger in a motor vehicle that was traveling in the vicinity of Broadway and West 103rd Street, New York, New York. Plaintiff was deprived of his constitutional rights when the individual defendants unlawfully stopped, questions, frisked, falsely arrested, and denied plaintiff the right to a fair trial in violation of the Fourth and Fourteenth Amendments to the United States Constitution and in violation of New York State Law.

PARTIES

2. Plaintiff CHEVAR HALL is a resident of the State of New York.

3. POLICE OFFICER HENRY LOPEZ, Tax No. 947659, is and was at all times relevant herein, an officer, employees, and agents of the New York City Police Department.

4. On the date of the subject incident, POLICE OFFICER HENRY LOPEZ, Tax No. 947659, was assigned to the 24th Precinct.

5. POLICE OFFICER HENRY LOPEZ, Tax No. 947659, is being sued in his individual and official capacities.

6. SERGEANT GREGORY FONTAINE, Tax No. 934280, is and was at all times relevant herein, an officer, employees, and agents of the New York City Police Department.

7. On the date of the subject incident, SERGEANT GREGORY FONTAINE, Tax No. 934280, was assigned to the 24th Precinct.

8. SERGEANT GREGORY FONTAINE, Tax No. 934280, is being sued in his individual and official capacities.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in his as an officer, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. At all times relevant hereto, defendants CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

11. Defendants City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agents in the area of law enforcement and for which it is ultimately responsible. The defendants City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

12. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendants, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

13. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

14. On July 2, 2016, at approximately 5:00 p.m., plaintiff was a lawful passenger in a motor vehicle traveling in the vicinity of Broadway and West 103rd Street, New York, New York.

15. On July 2, 2016, at approximately 5:00 p.m., plaintiff was a lawful passenger in the backseat of a motor vehicle that another individual was driving.

16. Thereafter, the defendant police officers pulled over the motor vehicle in the vicinity of Broadway and West 103rd Street, New York, New York without reasonable suspicion or probable cause.

17. The defendant police officers unlawfully ordered plaintiff to exit the motor vehicle.

18. Plaintiff complied with all of the defendant police officers commands and requests.

19. At no time relevant herein did plaintiff commit a crime or behave in a way that would establish probable cause to believe that plaintiff committed a crime.

20. At no point in time did the defendant police officers have probable cause to believe plaintiff committed any crime.

21. At no point in time was plaintiff in possession, custody or control of any drugs, guns, or contraband of any kind.

22. Nevertheless, the defendant police officers unlawfully handcuffed plaintiff, and he was falsely arrested by the defendant police officers.

23. Thereafter, plaintiff was transported to the 24th precinct for arrest processing.

24. When plaintiff arrived at the 24th Precinct, he was photographed, fingerprinted and then placed in a holding cell by the defendants.

25. At no time in the 24th Precinct did defendants recover any contraband or any other illegal paraphernalia from plaintiff.

26. On July 3, 2016, after several hours in custody at the 24th precinct, plaintiff was transported to Manhattan Central Booking and placed in a holding cell.

27. Thereafter, the defendant police officers provided the New York County District Attorney's Office with false, misleading and/or incomplete information about the facts that allegedly led them to believe that plaintiff committed a crime.

28. Specifically, the defendant police officers falsely accused claimant of unlawful possession of a skimmer device in the second degree.

29. After being unlawfully detained for approximately 28 hours, on July 3, 2016, at approximately 9:00 p.m., the Manhattan District Attorney's Office declined to prosecute plaintiff for any crimes and he was released from custody.

30. As a result of the unlawful arrest, plaintiff was fired from his job as a construction worker.

31. The police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, seizure, false arrest, and denial of a fair trial of plaintiff.

32. The unlawful stop, question, false arrest, false imprisonment, unlawful seizure, and denial of fair trial of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

33. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully set forth at length herein.

34. The individually named police officer defendants while acting within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, falsely arrested, falsely imprisoned, and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

35. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 34 with the same force and effect as if more fully set forth at length herein.

36. The acts and conduct of the defendants constitutes false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

37. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

38. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

39. The City, as the employer of the officer defendants, are responsible for their wrongdoing under the doctrine of *respondeat superior*.

40. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

41. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.

42. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

43. The conduct of defendants in stopping, frisking, and searching, plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

44. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution

45. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

46. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

47. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Denial of Right to Fair Trial

48. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 47 with the same force and effect as if fully set forth herein.

49. Defendants manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

50. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

51. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

52. In withholding/creating false evidence against plaintiff Chevar Hall and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

53. As a result of the foregoing, plaintiff Chevar Hall, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

54. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

55. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

Failure to Intervene

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in his presence by officers.

58. Defendants failed to intervene to prevent the unlawful conduct described herein.

59. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

JURY DEMAND

62. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Chevar Hall demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
June 24, 2019

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: POLICE OFFICER HENRY LOPEZ, Tax No. 947659, 24th Precinct, 151 W 100th St,
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New York, NY 10024

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
June 24, 2019

/s/
STUART E. JACOBS, ESQ.